lords: and therefore the moſt uſual, becauſe the ſureſt, way is to grant the dignity by patent, which enures to a man and his heirs according to the limitations thereof, though he never himſelf makes uſe of it[q]. Yet it is frequent to call up the eldeſt ſon of a peer to the houſe of lords by writ of ſummons, in the name of his father's barony: becauſe in that caſe there is no danger of his children's loſing the nobility in caſe he never takes his ſeat; for they will ſucceed to their grand-father. Creation by writ has alſo one advantage over that by patent: for a perſon created by writ holds the dignity to him *and his heirs*, without any words to that purport in the writ; but in letters patent there muſt be words to direct the inheritance, elſe the dignity enures only to the grantee for life[r]. For a man or woman may be created noble for their own lives, and the dignity not deſcend to their heirs at all, or deſcend only to ſome particular heirs: as where a peerage is limited to a man, and the heirs male of his body by Elizabeth his preſent lady, and not to ſuch heirs by any former or future wife.

LET us next take a view of a few of the principal incidents attending the nobility, excluſive of their capacity as members of parliament, and as hereditary counſellors of the crown; both of which we have before conſidered. And firſt we muſt obſerve, that in criminal caſes, a nobleman ſhall be tried by his peers. The great are always obnoxious to popular envy: were they to be judged by the people, they might be in danger from the prejudice of their judges; and would moreover be deprived of the privilege of the meaneſt ſubjects, that of being tried by their equals, which is ſecured to all the realm by *magna carta*, c. 29. It is ſaid, that this does not extend to biſhops; who, though they are lords of parliament, and ſit there by virtue of their baronies which they hold *jure eccleſiae*, yet are not ennobled in blood, and conſequently not peers with the nobility[s]. As to peereſſes, no proviſion was made for their trial when accuſed of treaſon or

[q] Co. Litt. 16.
[r] Co. Litt. 9 16.
[s] 3 Inſt. 30, 31.

felony,